



Mr Brett Tobin

[email redacted]

27 April 2022

Dear Mr Tobin

Application No.	APP-0008263309
Applicant	TH Investments (Kingsgrove) Pty Ltd
Application for	Hotel licence (full) with minors area authorisation
Licence name	The Grove Social House
Trading hours	Consumption on Premises: Monday to Saturday 10:00 AM – 12:00 AM Sunday 10:00 AM – 10:00 PM Takeaway Monday to Saturday 10:00 AM – 12:00 AM Sunday 10:00 AM – 10:00P PM
Premises	264 Kingsgrove Road KINGSGROVE NSW 2208
Legislation	Sections 3, 11A, 12, 14, 15, 15A, 17, 40, 44, 45, 48, 51 and 121 of the <i>Liquor Act 2007</i>

Decision of the Independent Liquor & Gaming Authority

Application for a hotel licence (full) with minors area authorisation – The Grove Social House

The Independent Liquor & Gaming Authority considered the application above, and decided on **13 October 2021** to **approve** the application under section 45 and 51 of the *Liquor Act 2007*, subject to imposing conditions as set out in Schedule 1.

Concise statement of reasons

A concise statement of reasons for this decision is attached at the end of this letter.

In the interest of efficient finalisation of determined matters in a high-volume liquor and gaming jurisdiction, the Authority will only produce a detailed statement of reasons for applications which are refused, partially approved or the subject of stakeholder objections.

A concise statement of reasons is produced for non-contested applications that have been approved by the Authority, in cases where a statement of reasons is required to be published for the application under section 36C of the *Gaming and Liquor Administration Act 2007*.

The concise statement of reasons briefly sets out the material considered by the Authority, the legislative requirements, and the Authority's key findings.

ase manager, Leonie Jennings, at

[email redacted]

Yours faithfully

Philip Crawford
Chairperson
For and on behalf of the **Independent Liquor & Gaming Authority**

Concise statement of reasons

Key facts

Application No.	APP-0008263309
Applicant	TH Investments (Kingsgrove) Pty Ltd
Application for	Hotel licence (full) with minors area authorisation
Licence name	The Grove Social House
Premises	264 Kingsgrove Road KINGSGROVE NSW 2208
Trading hours	Consumption on Premises: Monday to Saturday 10:00 AM – 12:00 AM Sunday 10:00 AM – 10:00 PM Takeaway: Monday to Saturday 10:00 AM – 12:00 AM Sunday 10:00 AM – 10:00 PM
Application date	19 March 2021
Decision	Approved under section 45 and 51 of the <i>Liquor Act 2007</i>
Decision date	13 October 2021

Material considered by the Authority

The Authority has considered the following material in determining the application:

- application material, including evidence of notification to specified stakeholders and the community about the application
- Category B community impact statement
- premises plan setting out the proposed boundaries of the licensed premises and any applicable authorisations
- plan of management for the licensed business at the premises
- development consent for the premises
- statistics sourced from Liquor & Gaming NSW, Bureau of Crime Statistics and Research, NSW Health and Australian Bureau of Statistics in respect of the socio-economic status, liquor licence density, alcohol-related crimes rates, and health issues in the relevant local and broader communities
- submissions from NSW Police, Bayside Council, Liquor & Gaming NSW (L&GNSW) Compliance and Transport for NSW in relation to the application
- seven submissions from members of the public objecting to establish a hotel at the premises; that raised concerns regarding the impact of the premises on current residents, impact on parking amenities, the saturation of existing facilities offering liquor, and concerns about the locale of the premises to nearby schools. Six of the submissions were provided prior to the community consultation process, with one provided during the process.
- the applicant's response to those submissions.

Legislative requirements

The Authority has considered the application in the context of the following sections of the *Liquor Act 2007*, and the associated clauses of the Liquor Regulation 2018:

- Section 3: Statutory objects of the Act and relevant considerations.
- Sections 11A and 12: Standard trading period for liquor licences and a mandatory 6-hour period during which liquor cannot be sold.
- Sections 14, 15, 15A and 17: Specific provisions in respect of a hotel licence.
- Section 40: Minimum procedural requirements for a liquor licence application to be validly made.
- Section 44: Submissions to Authority in relation to licence applications.
- Section 45: Criteria for granting a liquor licence.
- Section 48: Requirements in respect of a CIS, including a requirement that the Authority must not approve the application unless it is satisfied, having regard to the CIS and other available information, that the overall social impact of doing so will not be detrimental to the well-being of the local or broader community.
- Section 51: General provisions relating to licence-related authorisations.
- Section 121: Minors in hotels in company of responsible adult.

The Authority has also had regard to its Guideline 6 in considering the overall social impact of approving the application pursuant to section 48 of the Act.

Key findings

In accordance with its Guideline 6, the Authority finds that the relevant local community for the purposes of this decision is the suburb of Kingsgrove, and the broader community is the Local Government Area of Bayside.

Positive social impacts

The Authority is satisfied on the material before it that the proposal set out in the application, if approved, would likely benefit the local and broader communities through the provision of increased liquor access, choice and convenience.

The Authority noted that:

- the premises will be one of two hotels that operated in the suburb of Kingsgrove
- the demolition, construction and fit out of the premises will commence upon grant of the licence
- the applicant has consented to a condition which does not permit the operation of the licence until a copy of the occupational certificate has been provided to Liquor & Gaming NSW, with Bayside Council being satisfied of with this condition.

Negative social impacts

The Authority accepts that the proposal may, over time, contribute to an increase in alcohol-related harm in the local and broader communities, including alcohol-fuelled violence, health problems and/or social and amenity issues, having regard to the:

- concerns raised by the submitters, including:
 - operation of the premises may have impact on current and future residents of the area
 - proximity to local schools
 - potential impact to traffic congestion and parking amenities
- presence of crime hotspots in the local community
- the application foreshadowing an intention to operate between 0-20 gaming machines at the Premises in the future.

The Authority is nevertheless satisfied that these risk factors are sufficiently mitigated by the following:

- the absence of any objections from agency stakeholders or members of the community
- lower than average liquor licence density in the local and/or broader community
- not located in crime hotspot for alcohol-related non-domestic assault, or alcohol related offensive conduct, crime rates in all categories are lower compared to NSW rates
- lower than average alcohol-attributable hospitalisations and deaths in the LGA compared to NSW
- higher than average level of socio-economic advantage in LGA
- harm minimisation measures set out in the plan of management and licence conditions as set out in Schedule 1.

Overall social impacts and conclusion

Having considered the positive and negative social impacts that are likely to flow from the applicant's proposal, the Authority is satisfied that the overall social impact of approving the application will not be detrimental to the well-being of the local or broader community.

The Authority is also satisfied that the other legislative requirements for the approval of the application have been met.

The Authority finds, having regard to the above, that approving the application is consistent with the statutory objects and considerations of the Act to regulate the liquor industry in line with the community's expectations, needs and aspirations, and facilitate the balanced and responsible development of the liquor industry and related industries.

Accordingly, the Authority approves the application under section 45 and 51 of the Act.



Philip Crawford
Chairperson
For and on behalf of the **Independent Liquor & Gaming Authority**

Schedule 1 – Licence conditions to be imposed The Grove Social House

6-hour closure

1. Section 11A of the *Liquor Act 2007* applies to this licence. Liquor must not be sold by retail on the licensed premises for a continuous period of 6 hours between **4:00 AM and 10:00 AM** during each consecutive period of 24 hours. The licensee must comply with this 6-hour closure period along with any other limits specified in the trading hours for this licence.

Restricted trading & NYE - Hotel

2. Restricted trading & NYE (std)

Consumption on premises

Good Friday 12:00 noon – 10:00 PM

Christmas Day 12:00 noon – 10:00 PM (liquor can only be served with or ancillary to a meal in a dining area)

December 31st Normal opening time until normal closing time or 2:00 AM on New Year's Day, whichever is the later

Note: Trading is also allowed after midnight into the early morning of Good Friday and Christmas Day if authorised by an extended trading authorisation. Trading must cease at the time specified under the authorisation. The latest time that can be specified is 5:00 AM.

3. Restricted trading & NYE

Take away sales

Good Friday Not permitted

December 24th Normal trading Monday to Saturday, 10:00 AM to 12:00 midnight on a Sunday

Christmas Day Not permitted

December 31st Normal trading Monday to Saturday, 10:00 AM to 12:00 midnight on a Sunday

Social impact

4. The business authorised by this licence must not operate with a greater overall level of social impact on the well being of the local and broader community than what could be reasonably expected from the information contained in the Community Impact Statement, application and other information submitted in the process of obtaining this licence.

CCTV

5. Closed-circuit television system

- 1) The licensee must maintain a closed-circuit television (CCTV) system on the premises in accordance with the following requirements:

- (a) the system must record continuously from opening time until one hour after the premises is required to close (or, in the case of a premises that is not required to cease trading, continuously at all times),
- (b) recordings must be in digital format and at a minimum of ten (10) frames per second,
- (c) any recorded image must specify the time and date of the recorded image,
- (d) the system's cameras must cover the following areas:
 - (i) all entry and exit points on the premises,
 - (ii) the footpath immediately adjacent to the premises, and
 - (iii) all publicly accessible areas (other than toilets) within the premises.

- 2) The licensee must also:

- (a) keep all recordings made by the CCTV system for at least 30 days,
- (b) ensure that the CCTV system is accessible at all times the system is required to operate pursuant to clause 1(a), by at least one person able to access and fully operate the system, including downloading and producing recordings of CCTV footage, and

- (c) provide any recordings made by the system to a police officer or Liquor and Gaming NSW inspector within 24 hours of any request by the police officer or Liquor and Gaming NSW inspector to provide such recordings.

Plan of management

6. The premises is to be operated at all times in accordance with the Plan of Management dated **February 2020** as may be varied from time to time after consultation with NSW Police. A copy of the Plan of Management is to be kept on the premises, and made available for inspection on the request of a police officer, council officer, Liquor and Gaming NSW inspector, or any other person authorised by the Independent Liquor and Gaming Authority.

Liquor accord

7. The licensee or its representative must join and be an active participant in the local liquor accord.

Incident register

8. Incident register

- 1) The licensee must maintain a register, in which the licensee is to record the details of any of the following incidents and any action taken in response to any such incident:
 - a. any incident involving violence or anti-social behaviour occurring on the premises,
 - b. any incident of which the licensee is aware that involves violence or anti-social behaviour occurring in the immediate vicinity of the premises and that involves a person who has recently left, or been refused admission to, the premises,
 - c. any incident that results in a person being turned out of the premises under section 77 of the Liquor Act 2007,
 - d. any incident that results in a patron of the premises requiring medical assistance.
- 2) The licensee must, if requested to do so by a police officer or Liquor & Gaming NSW inspector:
 - a. make any such incident register immediately available for inspection by a police officer or Liquor & Gaming NSW inspector, and
 - b. allow a police officer or Liquor & Gaming NSW inspector to take copies of the register or to remove the register from the premises.

The licensee must ensure that the information recorded in the incident register under this condition is retained for at least 3 years from when the record was made.

Crime scene preservation

9. Immediately after the person in charge of the licensed premises or a staff member becomes aware of any incident involving an act of violence causing injury to a person on the premises the person in charge of the licensed premises and/or staff member must:
- a. take all practical steps to preserve and keep intact the area where the act of violence occurred,
 - b. retain all material and implements associated with the act of violence in accordance with the crime scene preservation guidelines issued by NSW Police, as published from time to time on the Liquor and Gaming NSW website,
 - c. make direct and personal contact with NSW Police to advise it of the incident, and
 - d. comply with any directions given by NSW Police to preserve or keep intact the area where the violence occurred.

In this condition, 'staff member' means any person employed by or acting on behalf of, the licensee of the premises, and includes any person who is employed to carry on security activities (e.g. crowd controller or bouncer) on or about the premises.

Security guards

10. The licensee must ensure that from 6:00 PM, on each day of a week: at least one (1) uniformed licensed security officer is employed at the premises.

Uniformed licensed security officers are to be employed at a ratio of not less than one per one hundred (1:100) patrons or part thereof.

Uniformed security are to continually patrol the premises and the area in the vicinity of the premises to ensure that patrons do not loiter or linger in the area or cause nuisance or annoyance to the neighbourhood.

The licensee must ensure whenever security personnel are engaged; a register stating the security officer's full name, security licence number, start date and time, finish date and time and signature is kept and produced to police upon request.

Patron capacity

11. The maximum number of patrons permitted on the premise is not to exceed 200.

Patron capacity - terrace

12. The maximum number of patrons permitted on the terrace at any time is 20.

Licensee training

13. Licensee training must be completed no later than six (6) months from the date of grant of the liquor licence.

Minors area authorisation

14. Minors Area Authorisation: Whole of the licensed premises excluding the gaming room.

Construction requirement

15. The approval for the grant of the hotel licence, application (APP-0008263309) does not take effect until Liquor & Gaming NSW has been advised in writing that the hotel premises at 264 Kingsgrove Road, Kingsgrove have been constructed, fitted out and are ready to commence trading.